



ANNUAL TOWN MEETING

May 20, 2019

Milford, Massachusetts

COMMONWEALTH OF MASSACHUSETTS

FINANCE COMMITTEE REPORT

Chris Morin, Chairman

Aldo Cecchi	Philip Ciaramicoli, CPA
Alberto Correia	Robert DeVita
Jerry Hiatt	Joyce Lavigne
Andy Lizotte	Charles Miklosovich
Mike Nicholson	Jeff Niro
Michael Schiavi	Michael Soares
John Tennaro, Esq.	Vincenzo Valastro

WORCESTER, SS: To either Constable of the Town of Milford in said County, GREETINGS:

In the name of the Commonwealth aforesaid, you are hereby required to notify and warn the Inhabitants of the Town of Milford, qualified by law to vote in Town Affairs, to meet in the Upper Hall of the Milford Town Hall, 52 Main Street, on the 20th day of May, 2019 A.D. at 7:00 P.M. and then and there to act upon the following articles:

ARTICLE 1: To hear and act upon reports of all Town Officers and Committees of the Town.

INFO: Recurring annual vote that allows reports to be presented to the town meeting
FINCOM: no discussion required

ARTICLE 2: Personnel Board
To see if the Town will vote to amend the Wage and Salary Schedule of the Wage and Salary Administration Plan by establishing new position levels and salary levels, as recommended by the Personnel Board for the Fiscal Year beginning July 1, 2019 or take any other action in relation thereto.

INFO: Annual reoccurring article to amend wage and salary levels of Town employees.
FINCOM: Discussion has been held all year to evaluate the amounts presented. This represents a general increase of 2.5 %.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

A POSITION LEVELS – SALARIED POSITIONS

LEVELS POSITION TITLE

I	Assistant Town Counsel
	Community Development Director
	Local Building Inspector
II	Facilities Director
	Network Administrator
	Town Accountant*
	Benefits Coordinator
	Tax Collector*
	Town Treasurer*
III	HR Director
	IT Manager
	Highway Supervisor
	Senior Center Director
	Town Planner
	Assessor/Administrator
	Youth Center Director
	Parks and Recreation Administrator
	Police Lieutenant
IV	Health Agent
	Town Engineer
	Director, Sewer Operations
	Deputy Police Chief
V	Building Commissioner
	Town Counsel*
	Town Administrator*
	Police Chief*
	Fire Chief*
	Finance Director*

*denotes contract

B COMPENSATION SCHEDULE – SALARIED POSITIONS

STEP LEVELS	I	II	III	IV	V
1	51,555	61,543	63,507	72,732	91,797
2	54,686	65,279	67,363	77,148	97,371
3	57,816	69,016	71,218	81,563	102,944
4	60,947	72,752	75,074	85,980	108,518
5	64,076	76,489	78,929	90,396	114,091
6	67,206	80,226	82,785	94,811	119,665
7	70,337	83,962	86,640	99,227	125,238
8	73,467	87,699	90,476	103,643	130,812

B1 COMPENSATION SCHEDULE – “MAXED” SALARIED POSITIONS

<u>LABOR GRADE</u>	<u>SALARY</u>	<u>POSITION TITLE</u>	<u>EMPLOYEE NAME</u>
III	93,208	Town Planner	Larry Dunkin
III	92,285	Assessor/Admin.	Jennifer Sclar

Any employee whose base rate of pay effective as of June 30, 2019 exceeds the maximum pay authorized for his/her Level set forth above shall continue to receive his/her current rate of pay for fiscal year 2020, but increased by a factor of two and a half (2.5%) percent.

C POSITION LEVELS – HOURLY RATED POSITIONS

<u>LEVELS</u>	<u>POSITION TITLE</u>
I	Clerk, Community Development PT/FT Clerk/Receptionist, Senior Center Jr. Building Custodian Legal Secretary Planning Assistant Van Driver/Senior Center Volunteer Services Coordinator/Senior Center Program Coordinator, Youth Center FT
II	Admin. Services Coordinator Admin. Asst. to Town Administrator Asst. Animal Control Officer Admin. Asst. to Senior Center Director Asst. Director, Youth Center Asst. Zoning Enforcement Officer PT/FT Asst. to Fire Chief Asst. to Police Chief Client Services Coordinator/Senior Center PT Deputy Wiring Inspector Deputy Plumbing/Gas Inspector Dispatcher PT Health Inspector FT Health Inspector PT Lister/Data Collector Local Building Inspector PT Outreach Coordinator/Senior Center PT Paralegal/Legal Assistant Plumbing/Gas Inspector Program Coordinator/Community Development PT/FT Program Coordinator/Senior Center PT Property Rehab. Specialist/Community Development PT Senior Custodian Technology Support Technician Transportation Coordinator/Senior Center Wiring Inspector
III	Animal Control Officer Asst. Town Accountant Asst. Town Treasurer Financial Analyst PT Maintenance Supervisor

D COMPENSATION SCHEDULE – HOURLY RATED POSITIONS

STEP LEVELS:	<u>I</u>	<u>II</u>	<u>III</u>
1	17.79	22.23	23.37
2	18.76	23.43	24.63
3	19.72	24.64	25.89
4	20.69	25.84	27.15
5	21.65	27.05	28.41
6	22.61	28.25	29.67
7	23.58	29.45	30.93
8	24.53	30.66	32.20

D1 COMPENSATION SCHEDULE – “MAXED” HOURLY RATED POSITIONS

<u>LABOR GRADE</u>	<u>HOURLY SALARY</u>	<u>POSITION TITLE</u>	<u>EMPLOYEE NAME</u>
I	25.27	Jr. Building Custodian	Paul Boisclair
I	25.27	Jr. Building Custodian	Burton Cormier
I	25.27	Jr. Building Custodian	Domingos Pinto
I	25.02	Jr. Building Custodian	Lester Simmons
I	25.02	Recept. Clerk/Sr. Ctr. PT	Claudia Cormier
II	31.27	Lister/Data Collector	Rebecca Alger
II	31.27	Health Inspector PT	Dave Denlinger
II	31.27	Health Inspector	Steve Garabedian
II	31.27	Health Inspector	Lisa Tamagni
II	31.27	Paralegal/Legal Asst.	Melissa Tomas
II	31.27	Plumbing/Gas Inspector	Joseph Zacchilli
II	31.27	Wiring Inspector	Michael Mancini
III	32.84	Asst. Town Treasurer	Janet Ferreira

E	HOURLY NON-RATED POSITIONS	PER HOUR
	Assistant Pool Manager PT	17.39
	Call Firefighter \$100 Stipend (plus)	14.69
	Cemetery Groundskeeper	18.43
	Cemetery Working Foreman	25.39
	Clerk of Works/Senior Center PT (temporary)	27.76
	Clerks/Seasonal – All Departments	18.43
	Clerks/Substitute – All Departments	18.43
	Dental Health Specialist	18.43
	Highway Seasonal Heavy Equipment Operator	29.15
	Highway Seasonal Light Equipment Operator	25.25
	Laborers/Seasonal PT: Parks, Cemetery, Other	12.00
	Laborers/PPT: Parks, Cemetery, Etc.	18.43
	Matrons/Police	18.43
	Milford Youth Center: Activities Supervisor PT	12.00
	Milford Youth Center: Activities Facilitator PT	13.05
	Milford Youth Center Concession Equipment Monitor PT	12.00
	Milford Youth Center: Front Desk Monitor PT	12.00
	Milford Youth Center: Health Coordinator PT	21.19
	Milford Youth Center: Program Coordinator PT	19.59
	Milford Youth Center: Program Facilitator PT	13.05
	Milford Youth Center: Seasonal Camp Counselor	12.00
	Milford Youth Center: Summer Camp Counselor	17.77
	Mosquito Spray Applicator/Control	17.78
	Pool Lifeguard PT	15.71
	Pool Manager PT	18.78
	School Nurse PT	19.80
	Soil Testing Assistant	16.37
	Student Police Officer	24.09
	Transfer Station Attendant	17.78
	Transfer Station Supervisor	18.43
	Veterans Agent	36.94
F	MISCELLANEOUS POSITIONS	ANNUAL
	Assistant Health Agent PT	8056
	Board of Health Physician PT	7047
	Burial Agent	1110
	Board of Registrars Chairperson	2912
	Board of Registrars Members PT (2)	2330
	Fair Housing Director PT	2217
	Foreign Language Translator	602
	Inspector of Animals	2581
	Municipal Hearings Officer	2996
	Pest Control Officer PT	3492
	Sealer of Weights and Measures	8939
G	ELECTION WORKERS	STIPEND
	Wardens and Clerks	209
	Deputies	183
	Checkers Full Day	157
	Checkers ½ Day	105
	Election Custodian (per election)	172

H**CLERKS, VARIOUS BOARDS AND COMMITTEES (PT)**

Level	Description	Amount
1	Ad Hoc Clerk	\$2,050
1	Minutes Recorder/Industrial Development Committee	\$2,050
1	Minutes Recorder/Library Board of Trustees	\$2,050
1	Minutes Recorder/Commission on Disability	\$2,050
1	Minutes Recorder/Board of Selectmen	\$2,050
2	Clerk, Planning Board	\$4,100
2	Clerk, Conservation Commission	\$4,100
2	Clerk, Board of Health	\$4,100
2	Clerk, Zoning Board of Appeals	\$4,100
2	Clerk, Vernon Grove Cemetery Trustees	\$4,100
3	Clerk, Finance Committee	\$6,150
3	Clerk, Personnel Board	\$6,150
3	Clerk, Park Commission	\$6,150

PT: Part Time, FT: Full Time, PPT: Permanent Part Time

Any Clerk whose rate of pay effective as of June 30, 2019 exceeds the pay authorized for his/her position set forth above shall continue to receive his/her current rate of pay for fiscal year 2020, but increased by a factor of 2.5%.

Any employee hired on or after 7/1/2016 will have an anniversary/step date of their date of hire. Employees hired before 7/1/2016 will have their step date as July 1 of each year.

ARTICLE 3: Board of Selectman

To see if the Town will vote to fix the salary and compensation of all elected officers of the Town, as provided by Section 108 of Chapter 41 of the General Laws, as follows:

	FY 16	FY17	F18	F19	F20	Increase
Town Clerk	\$79,454	\$81,044	\$82,655	\$84,318	\$86,426	2.5%
Assessor (Chairman)	\$7,577	\$7,653	\$7,806	\$7,962	\$8,161	2.5%
Assessor (Members)	\$6,791	\$6,859	\$6,996	\$7,136	\$7,314	2.5%
Highway Surveyor	\$93,273	\$95,139	\$97,042	\$98,983	\$101,458	2.5%
Tree Warden	\$6,539	\$6,605	\$6,737	\$6,872	\$7,044	2.5%
Selectmen (Chairman)	\$8,634	\$8,721	\$8,895	\$9,073	\$9,300	2.5%
Selectmen (Members)	\$7,671	\$7,748	\$7,903	\$8,061	\$8,263	2.5%
Vernon Grove Trustee (Clerk)	\$3,673	\$3,710	\$3,784	\$3,860	\$3,957	2.5%
Board of Health (Chairman)	\$2,471	\$2,497	\$2,547	\$2,598	\$2,663	2.5%
Board of Health (Members)	\$2,159	\$2,181	\$2,225	\$2,270	\$2,327	2.5%
Sewer Commissioner (Chairman)	\$2,471	\$2,497	\$2,547	\$2,598	\$2,663	2.5%
Sewer Commissioner (Members)	\$2,159	\$2,181	\$2,225	\$2,270	\$2,327	2.5%
Park Commissioner (Chairman)	\$2,471	\$2,497	\$2,547	\$2,598	\$2,663	2.5%
Park Commissioner (Members)	\$2,159	\$2,181	\$2,285	\$2,270	\$2,327	2.5%
Planning Board (Chairman)	\$2,471	\$2,497	\$2,547	\$2,598	\$2,663	2.5%
Planning Board (Members)	\$2,159	\$2,181	\$2,225	\$2,270	\$2,327	2.5%
Moderator	\$2,376	\$2,400	\$2,448	\$2,497	\$2,559	2.5%

INFO: Recurring annual vote that fixes the salary and compensation of all elected officers of the town.

FINCOM: Recurring annual vote on setting compensation rates.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 4: Board of Selectmen

To see if the Town will vote to raise and appropriate such sum or sums of money as may be necessary to defray expenses for the financial year beginning July 1, 2019 or take any other action in relation thereto.

INFO: Recurring annual vote that allows the Selectmen to set the schedule for taxes that allow the town to meet the financial obligations approved by town meeting.

FINCOM: Recurring annual vote approved each year. Most of the departments have met the goal of 2% increases on the salary lines and flat spending of expenses. The total is \$xxxxx

All departments that came in above the 2.5% presented the variances to the Fincom and budgets were adjusted. Total proposed budget is \$107,318,498.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 5: Town Treasurer / Selectmen

To see if the Town will vote as follows to enact certain measures as set forth herein which are presented each year to the Annual Town Meeting:

- A. That the Town vote to authorize the Town Treasurer, with the approval of the Board of Selectmen, to borrow money from time to time in anticipation of the revenue of the financial year beginning July 1, 2019 in accordance with the provisions of General Laws, Chapter 44, Section 4 and to issue a note or notes therefore, payable within one year, and to renew any note or notes as may be given for a period of less than one year in accordance with General Laws, Chapter 44, Section 17, and
- B. That the Town vote to authorize the Board of Selectmen to take charge of all legal proceedings for or against the Town, and
- C. That the Town vote to authorize the Board of Selectmen to expend from funds received by the Town as fines for parking violations during Fiscal Year 2020, such sum or sums of money as are necessary to pay the costs and expenses of collecting such fines and otherwise complying with the provisions of Section 20A of Chapter 90 of the General Laws during said fiscal year, and
- D. That the Town vote to authorize the Town Treasurer and/or Tax Collector to enter into a compensating balance agreement or agreements for Fiscal Year 2019 pursuant to Chapter 44, Section 53F of the General Laws, and
- E. That the Town vote for Fiscal Year 2020, to authorize any and all departments to utilize, without further appropriation, any amounts received from insurance companies or other third parties as damages or payment for damage to any Town-owned property, for the purpose of repairing or replacing such property, or, as deemed appropriate by the Board of Selectmen, directly depositing such funds to the Municipal Building & Property Insurance Fund established by vote under Article 45 of the June 11, 1990 Annual Town Meeting, and
- F. That the Town vote to authorize all persons, boards or agencies of the Town otherwise authorized to contract for or on behalf of the Town, during Fiscal Year 2020 to enter into such contracts or agreements for up to five years, except in the case of contracts or agreements dealing with real estate which may be for up to ten years, and
- G. That the Town vote to authorize the Town Treasurer to accept deeds in lieu of foreclosure, pursuant to Chapter 60, Section 77C of the Massachusetts General Laws, or take any other action in relation thereto.

INFO: This article consolidates many reoccurring articles that are raised and necessary every year.

FINCOM: Discussion was in favor of these items as they are identical each year and necessary for the town government to operate.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 6: School Committee

To see if the Town will vote to transfer a sum of money, consistent with the funds raised from vending machines in the Milford School district, to be spent under the jurisdiction of the School Committee for purposes of Student Activities not funded in the School Department budget or take any other action in relation thereto.

INFO: Recurring annual article that allows the money collected from the school vending machines and paid into the general fund to be transferred back to the school.

FINCOM: Recurring annual article approved each year.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 7: School Committee

To see if the Town will vote to authorize the expenditure of the available balance in Fund 2696, Comcast Verizon-PEG access, to be spent under the jurisdiction of the School Committee for the purposes of performing upgrades in accordance with the PEG Access Agreements, or take any other action in relation thereto.

INFO: Funding is provided by the two cable company subscribers for PEG (political educational & government) Access Local Cable. This allows the money to be used by the School Committee.

FINCOM: The money is provided under legislation and this allows the money to be allocated and used.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 8: Town Treasurer / Town Counsel

To see if the Town will vote, pursuant to General Laws Chapter 60, Section 62A, to adopt a new Article 40 of the General By-Laws, "Tax Title Payment Agreements", as follows:

The Town Treasurer is authorized to enter into payment agreements between the treasurer and persons entitled to redeem parcels in tax title. Such agreements shall be for a term of 3 years, and may not waive any interest that has accrued on the amount of the tax title account. All such agreements shall be uniform for each class of tax titles. Any such agreement must require a minimum payment at the inception of the agreement of 25 per-cent of the amount needed to redeem the parcel. During the term of the agreement the treasurer may not bring an action to foreclose the tax title unless payments are not made in accordance with the schedule set out in the agreement or timely payments are not made on other amounts due to the town that are a lien on the same parcel.

or take any other action in relation thereto.

INFO: This defines the payment terms that a person may enter into as 3 years.

FINCOM: It was felt that allowing multiple years may allow terms to not be uniform and there would be room for friends to obtain more favorable terms than other citizens. This locks in the terms for all in a uniform fashion.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 9: Fire Chief

To see if the Town will vote to raise and appropriate, or transfer from available funds, a sum of money not to exceed \$60,000 to be spent under the jurisdiction of the Fire Chief for the purpose of purchasing and equipping a new staff car, or take any other action in relation thereto.

INFO: The staff car was scheduled to be replaced in the Fall of 2019. One of the current vehicles was severely damaged and will cost over \$9,000 to repair.

FINCOM: The capital sub committee reviewed the situation and recommended that the purchase be brought forward to the Spring as a "Special Circumstance" rather than repair the vehicle that was scheduled to be retired in six months.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 10: Parks Commission

To see if the Town will vote to raise and appropriate, or transfer from available funds, a sum of money not to exceed \$43,000 to be spent under the jurisdiction of the Parks Commission for the purpose of purchasing a 2019 XL 350-4wd truck, or take any other action in relation thereto.

INFO: The current pick up truck unexpectedly failed inspection. The truck was scheduled for replacement next year. A new truck would replace the existing vehicle and also include a plow accessory to allow it to be used in snow plowing.

FINCOM: A lengthy discussion was held regarding the ability for the Parks department to work with one vehicle being removed from service for the upcoming year. The plan was originally to replace it in the fall of 2019 which would allow the truck to come on line in the Spring of 2020. The sub committee felt that there is sufficient advantage to propose moving it to the Spring meeting as a "Special Circumstance".

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 11: Michael Soares et. al.

To see if the Town will vote to increase the membership of the Board of Selectmen from three (3) to five (5) members; and further, that the vote under this article shall not take effect unless the following question is submitted to the registered voters for acceptance, which question shall be printed on the official ballot to be used at the next Town election: "Shall the Town vote to approve the action of the representative Town Meeting in increasing the membership of the Board of Selectmen from three (3) members to five (5) members?" If a majority of the voters voting on the question shall vote in the affirmative, then the membership of the Board of Selectmen shall be increased, as aforesaid, at the next annual Town election held not less than thirty (30) days after the election at which the increase is voted. At that annual Town election, the Town shall choose by ballot the two (2) additional members of the Board of Selectmen, one (1) for a three (3) year term, and the other for a two (2) year term. Thereafter as each term expires, the Town shall choose by ballot a successor member for a three (3) year term. If, however, the majority of the voters shall vote in the negative on the above question, then this vote of the Town Meeting shall be null and void, or take any other action in relation thereto.

INFO: Milford is the largest town in Mass with three selectmen. It is only 1 of 4 towns with a representative government with 3 selectmen. This would eliminate issues when there is a conflict of interest and a single selectman has to recuse himself. This would also allow a more diverse board. Elections should be more civil if they are not always 1 / 1. Stipend expense would increase

FINCOM: The general feeling was that the town should have the opportunity to make the final decision. This would have to go to a referendum in 2020 and if approved the new elections would be in 2021.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 12: Board of Selectman / Insurance Advisory Committee

To see if the Town will vote to accept the provisions of Section 9D ½ of Chapter 32B of the General Laws by which acceptance the Town will be authorized to contribute the same percentage toward a surviving spouse's health insurance as was paid prior to the death of an employee or retiree, which question shall be printed on the official ballot to be used at the next Town election: "Shall the Town in addition to the payment of fifty percent of premium costs payable by the surviving spouse of an employee or retired employee for group general or blanket hospital, surgical, medical and other health insurance pay an additional or subsidiary rate?" If, however, the majority of the voters shall vote in the negative on the above question, then this vote of the Town Meeting shall be null and void, or take any other action in relation thereto.

INFO: At the present time the surviving spouse of a town employee on a retirement benefit would have to pay the full amount of health insurance after the spouse dies. Versus the 50/50 split that occurs while the spouse is alive.

FINCOM: There are a very limited number of people that could fall into this category. It is estimated that the worse case scenario might cause the town \$30,000 per year. The impact on a surviving spouse could be dramatic if they have to pay an extra \$5,000 - \$10,000 per year

FINANCE COMMITTEE RECOMMENDATION IS XXXX

ARTICLE 13: Board of Selectman

To see if the Town will vote to raise and appropriate, or transfer from available funds, a sum of money to be added to those sums previously appropriated to be utilized for the legal, engineering or other expert consulting services necessary to effectuate the final acquisition, and transfer, of the Milford Water Company and its assets to the Town of Milford, or take any other or take any other action in relation thereto.

INFO: The town needs an additional \$285,000 to the \$1,200,000 that has been spend on legal and consulting fees spend in order to purchase the water company. We are entering into what could be the final stage of the DPU evaluating data and setting a price for Milford to decide if it wants to buy the Water Company.

FINCOM: Spending more money does not feel right, but there is little we can do. The committee will need to call more expert witnesses during the evidentiary hearings next month, then it goes back to the courts and we expect a decision at the end of 2019 or early 2020.

ARTICLE 14: Geriatric Authority

To see if the Town will vote to authorize the Board of Selectmen to seek special legislation which special legislation would amend Chapter 76 of the Acts of 1982, creating the Milford Geriatric Authority, so as to eliminate the requirement for the Geriatric Authority to make payments to the Town of Milford "in lieu of taxes", and which legislation would provide, substantially as follows:

Section 1. Chapter 76 of the Acts of 1982 is hereby amended by striking Section 10B therefrom and inserting in place "thereof" a new Section 10B which will provide in full as follows: The Town shall not assess any tax upon the Geriatric Authority or Geriatric System or part thereof, or upon the income therefrom.

Section 2. This act shall take effect upon its passage.

or take any action in relation thereto.

INFO: This is an article that was passed in 2007 but was not submitted to the state for approval.

FINCOM: This essentially will allow the town to file the article that the 2007 town meeting approved to eliminate the Geriatric Authority paying the town fees for being on town land.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 15: Board of Selectmen

To see if the Town will vote to raise and appropriate, or transfer from available funds, a sum of money to be utilized under the jurisdiction of the Board of Selectmen for police chief services pending the filling of the vacancy in the office of Police Chief, or take any other action in relation thereto

THIS ARTICLE WILL BE PASSED OVER

ARTICLE 16: Board of Selectmen

To see if the Town will vote to raise and appropriate, or transfer from available funds, a sum of money, to be spent under the jurisdiction of the Police Chief Selection Committee, for general expenses, or take any other action in relation thereto.

INFO: This \$50,000 is required for the committee to pay for background checks and other administrative requirements.

FINCOM: In 2001, we spent \$25,000 on these type of expenses. There is really no choice but to perform he checks.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 17: Board of Selectman

To see if the Town will vote to raise and appropriate, or transfer from available funds, a sum of money to be utilized to pay the cost items in a Collective Bargaining Agreement between the Town of Milford and the Milford Cemetery Employees, Massachusetts Laborers' District Council of the Laborers' International Union of North America Local 272, or take any other action in relation thereto.

INFO: This will fund the new rate negotiated on the new contract which is retroactive to July 2018. The effect could be \$30,000

FINCOM: This is the normal manner we handle contracts.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 18: Bryan Cole et. al.

To see if the Town will vote to authorize the Board of Selectmen to seek special legislation to provide for November annual Town elections, which legislation would provide substantially as follows:

Section 1. Notwithstanding the provisions of 9A of chapter 39 of the General Laws, Article 1 of the General By-Laws of the Town of Milford, or any other general or special law to the contrary, the Town of Milford may hold in November its annual elections of officers and the determination of other matters as by law are required or determined by ballot.

Section 2. This act shall take effect upon its passage.

or take any action in relation thereto

INFO: Move the election from April to November.

FINCOM: The participation rate has been very low for many years. The national and state elections in November seem to get larger turnout than April local elections. In 2016, the national election had 70+% turnout. The State election of 2018 had 57%. The last local election of 2019 had <13%. Options such as Saturday voting were explored by the committee, but the November option seemed the best. At present 56 towns already have moved the election to November. This is not being driven by cost savings as they will be minimal as the elections would have to have separate ballots and administration staff.

NO VOTE WAS TAKEN

ARTICLE 19: Canvas n Cup LLC.

To see if the Town will vote to authorize the Board of Selectmen to petition the Legislature for special legislation to provide for the grant of an additional license for the sale of malt beverages and wine to be consumed on the premises, which legislation shall provide substantially as follows:

SECTION 1. Notwithstanding section 17 of chapter 138 of the General Laws, the licensing authority of the Town of Milford may, upon receipt of a completed application, payment of any applicable fees, after a public hearing and all due process, and in its sole discretion grant an additional license for the sale of wines and malt beverages to be drunk on the premises pursuant to section 12 of said chapter 138 to Canvas n Cup, LLC., at 189 Main Street in the Town of Milford. The license shall be subject to all of said chapter 138 except said section 17.

SECTION 2. This act shall take effect upon its passage.

or take any other action in relation thereto.

INFO: The number of licenses allowed in Milford is limited and to offer an additional license, a request must be made and approved by the State government.

FINCOM: As this is not a financial issue, the fincom voted to refer to the sponsor.

FINANCE COMMITTEE RECOMMENDATION IS REFER TO SPONSOR

ARTICLE 20: Police Chief

To see if the Town will vote to rescind the acceptance of General Laws chapter 90, Section 22B, Subsections (b) through (k) concerning the non-criminal penalties and disposition of abandoned motor vehicles as adopted by Article 4 at the Special Town Meeting on March 5, 1990, or take any other action in relation thereto.

INFO:

FINCOM: As this is not a financial issue, the fincom voted to refer to the sponsor.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 21: Planning Board

To see if the Town will vote to amend Section 3.9 Sign Regulations of the Zoning Bylaw relating to Projecting Signs as follows:

By Adding under 3.9.3 Definitions the following new definition:

"Projecting Sign - Any sign affixed perpendicular to a building or wall in such a manner that its leading edge extends more than six inches beyond the surface of such building or wall."

And By Adding under 3.9.5 Exemptions a new Section 3.9.5.7 as follows:

"3.9.5.1.7 Within the CA and CB Commercial districts, projecting signs if authorized by special permit of the Planning Board, provided however, that such signs shall not exceed 9 square feet in area, shall maintain a minimum unobstructed vertical clearance of 10 feet above sidewalks, and shall project no more than 4 feet into the right-of-way."

And In Addition By Adding under 3.9.7 Signs Permitted a new Section 3.9.7.14 as follows:

"3.9.7.14: Within OR, BP, CA, CB, CC, IA, IB and IC zoning districts – One projecting sign is permitted per building. Additional projecting signs may be permitted by special permit of the Planning Board. Any projecting sign shall not exceed 9 square feet in area, shall maintain a minimum unobstructed vertical clearance of 10 feet above sidewalks, driveways or parking areas, shall project no more than 4 feet from the building on which it is mounted, and shall be included in the aggregate calculation required by Section 3.9.7.10 herein."

or take any other action related thereto.

INFO: no information presented

FINCOM: no discussion held

FINANCE COMMITTEE RECOMMENDATION IS REFER TO SPONSOR

ARTICLE 22: Board of Selectmen

To see if the Town will vote to raise and appropriate, or transfer from available funds, a sum of money to be utilized to pay the cost items in a Collective Bargaining Agreement between the Town of Milford and the Milford Police Association, MCOP Local 218, AFL-CIO, or take any other action in relation thereto.

INFO: This will fund the new rate negotiated on the new contract which is retroactive to July 2018. The effect could be \$156,444.

FINCOM: This is the normal manner we handle contracts.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 23: Board of Selectmen

To see if the Town will vote to raise and appropriate, or transfer from available funds, a sum of money to be utilized to offset the snow and ice deficit in the current fiscal year, or take any other action in relation thereto.

INFO: This is the article that we have most years where the amount of snow and ice removal from last year was carried forward to be paid in this year's budget. This year we need \$205,000. The town does not fund the anticipated amount every year. This is due to the fact that this budget can be overspent and once you increase it you can never lower it.

FINCOM: The Fincom held off funding this in the fall to see how the town was performing financially. There is no difference in when we fund these expenses. Depending on the fiscal condition of the town we normally pay it either at the May town meeting to be included in the present year's expenses or put it off until the fall meeting and pay for it in the next year's budget. This pays for the expenses that occurred in this year with this year's money. Motion to allocate \$205,000

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 24: Finance Director

To see if the Town will vote to close out certain Special Article Accounts to the General Funds of the town or take any other action in relation thereto.

INFO: These are amounts left over from previous articles that have been completed at a lower cost than originally estimated and approved by town meeting. As the money was allocated by the town meeting, only the town meeting can close the account and return the funds to the general fund.

FINCOM: This is an action that the Fincom has been working with the Finance Director to return to the town any funds that are no longer required.

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

ARTICLE 25: Finance Director

To see if the Town will vote to transfer funds between line items voted under Article 4 of the May 20, 2019 Annual Town Meeting for the purpose of making funds available in line item accounts not sufficiently funded through the end of Fiscal Year 2020 or take any other action in relation thereto.

INFO: These are transfers within a department personnel to expenses or vice versa to balance the department's annual budget.

FINCOM: These have no net influence on spending as they are just administrative transfers

FINANCE COMMITTEE RECOMMENDATION IS FAVORABLE

And you are hereby directed to serve this warrant by posting at least fourteen days before said meeting attested copies of this warrant in ten or more public places located in said Milford.

HEREOF, FAIL NOT, and make due return of this warrant with your doings thereon to the Clerk of said Town at the time of said meeting.

Given under our hands at Milford this 20th day of May, 2019 MILFORD BOARD OF SELECTMEN

1		Reports		
2		Article 2 Personnel	Personnel Board	\$0
3		Elected Officials Stipends	Selectman	\$0
4		Budget	Selectman	\$107,318,498
5		Consolidating Routine Articles	Treasurer / Selectman	\$0
6		Vending Machines	School Committee	\$0
7		Cable Franchise Fees	School Committee	\$0
8		Tax Title Payments	Town Treasurer / Town Counsel	\$0
9		Staff Car	Fire Chief	\$60,000
10		Pick Up Truck	Parks Commission	\$43,000
11		Increase Board to 5 Selectman	Michael Soares	\$0
12		Health Insurance	Selectman / Insurance Comm	0-\$30,000
13		Water Company Negotiations	Selectman	\$285,000
14		Geriatric Authority Payments	Geriatric Authority	0
15		Police Chief Vacancy	Selectman	0
16		Police Chief Selection	Selectman	\$50,000
17		Cemetery Collective Bargaining	Selectman	\$6,500
18		November Elections	Brian Cole	\$0
19		Liquor License	Canvas n Cup	0
20		Abandoned Motor Vehicles	Police Chief	0
21		Zoning By Law	Planning Board	\$0
22		Collective Bargaining with Police	Selectman	\$154,441
23		Offset Snow & Ice Deficit	Selectman	\$205,000
24		Close out Old Articles	Finance Director	-\$213,084
25		Transfer of Funds between accounts	Finance Director	\$0

Article 24 Old Article Close Outs

Town Meeting	Article		Balance to be closed
2015-10	21	Hazard Mitigation Plan	\$11,320.00
2018-05	16	Election Equipment	\$2,000.00
2010-10	17	Charles River Project Phase 2	\$2,038.19
2016-05	29	Fiske Mill Bridge	\$5,455.19
2016-10	32	Fiske Mill Bridge Construction	\$74,153.17
2018-10	23	Median Barriers Cedar / 85	\$2,200.00
2004-10	08	Upgrade Transfer Station	\$14,176.66
2006-02	13	Rep / Imp Transfer Station	\$4,750.00
2015-10	25	Upgrades to Library	\$4,099.95
2017-10	21	Pave Parking Lot	\$6,437.46
2011-10	24	Muni Pool Repair	\$1,995.57
2018-10	24	Draper Park Lighting	\$9,000.00
2018-10	26	New Riding Mower w/trailer	\$40.60
2018-10	27	Replace Pick Up Truck	\$897.17
2016-10	10	Stacy Fire Doors	\$53,909.14
2017-10	17	Memorial Playground	\$13,572.00
2010-13-14-15-16	20 6 12 7	Replace Computers	\$39.38
2017-10	23	Replace HVAC Chiller	\$7,000.00
			\$213,084.48

All articles prior to the last 5 years are now closed

Article 25 Intra Department Transfers

Department	Transfer From	Amount	Transfer to
141 Assessor	General expenses 141-5300	\$7,621	Personal Services – Assessor 141-5110
192 Public Property & Bldgs	Personal Svcs – Gen Govt 148-5110	\$10,000	Personal Services – Public Prop & Buildings 192-5110
220 Fire	Personal Svcs – Fire 220-5110	\$30,000	Repair / Maint Equipment 220-5410
244 Sealer of Weights & Measures	Personal Svcs – Gen Govt 148-5110	\$240	General Expenses: Sealers of Weights and Measures 244-5300
422 Highway Construct & Maint	General Exp 422-5300	\$27,000	Repair / Maint: Vehicles / Equip 422-5420
510 Board of Health	Personal Svcs – BOH 510-5110	\$7,000	General Expenses - BOH 510-5300
650 Parks	Personal Svcs – Parks 650-51120	\$3,640	General Expenses– Parks 650-5300